



TOMASHA VILLAGE

A SUMMARY OF DEED RESTRICTIONS AND BY-LAWS

Although this is not an official document, it may be used as an easy reference to determine the guidelines for restrictions in Tomasha. Please retain this summary with your records. If you wish to obtain the actual legal document specific to your lot number, you can do so by visiting the Jackson County Courthouse.

Legend: DR, Deed Restrictions; BL, By-Laws; HD, Home Association Declaration

A. ITEMS NOT ALLOWED:

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| DR | 1. Temporary residences of any kind. |
| DR, BL | 2. Permanent clothes lines. |
| DR, BL | 3. School busses, tractors, trucks, commercial vehicles, boats, trailers, campers and RVs <u>can not</u> be parked at an owner's residence more than 24 hours at any one time. |
| DR | 4. Noxious or offensive trade or activity. |
| DR | 5. No Solar apparatus may be outside of any residence. Also, no radio or television transmitting or receiving antenna or dish may be outside of any residence unless it is no larger than a cube 2' x 2' x 2'. |
| DR | 6. Animals or livestock, except:
A. For a duplex - one dog, or one cat, or one other household pet is allowed per family unit.
B. For a single family home, no more than two dogs, or two cats, or two other household pets. |
| DR | 7. Signs: only one sign is permitted, not exceeding five square feet, indicating "For Sale", "For Rent" or a political sign, not to exceed five sq. ft. is allowed seven days prior to an election and one day after an election. |
| DR | 8. Tanks for storing oil or other fluids. |
| DR | 9. Outbuildings of any kind. |
| DR | 10. Trash, refuse, etc. shall not be dumped on any land. |
| DR | B. Only yard fencing is permitted. There are also restrictions regarding where fencing can be placed. |
| DR | C. All plans for exterior changes or additions to residences, buildings, walls, roofs and swimming pool construction must be approved by the Architectural Review Committee. Failure to do so may result in the Association filing an injunction to prevent construction. |
| DR | D. There are minimum square footage requirements for each dwelling (varying by lot). |

Continued on back.

DR E. All driveways shall be poured concrete, asphalt, brick, cast concrete paving block, or coated concrete, and shall be subject to the approval of the Architectural Review Committee

DR F. All roofing shall be wood shingle, slate, natural clay tile, natural concrete tile, or composition weathered gray roof material, and shall be subject to the approval of the Architectural Review Committee.

HD-BL G. The owners of property in Tomasha, which has been subjected to the Homes Association Declaration (HD) are members of the Association. Owners are entitled to the benefits and services provided by the Association.

BL H. Guests are permitted to use Association Property only when accompanied by a member.

HD I. The Corporation (Association) has the right or responsibility to, in part:

- HD 1. Manage and maintain the common property.
- HD 2. Enforce the restrictions.
- HD-BL 3. Own property.
- HD 4. Levy and collect assessments.
- HD 5. Maintain and provide for the operation of the swimming pool, including establishing a charge for its use.

HD J. Assessments become liens against the property upon which interest accrues. If unpaid, suit can be brought to sell the property to satisfy the lien.

HD K. Provisions of the Lien: Association Declarations run with the land. Thus, successor owners, as assigned, continue to be subject to its provisions.

DR L. The Board of Directors shall conduct, manage and control the business of the Association.

DR M. Deed restrictions may be changed in December 2008, and every ten years thereafter by a majority vote of the lot owners. They may be changed at any time by a 66 2/3rds vote^a

BL N. There shall be an annual meeting of the members of the Association.